enquiry. If the Supreme Court, after the enquiry, upholds the cause of removal and advises so, the President can remove the chairman or a member. Under the provisions of the Constitution, the advise tendered by the Supreme Court in this regard is binding on the President. However, during the course of enquiry by the Supreme Court, the governor can suspend the concerned chairman or member, pending the final removal order of the President on receipt of the report of the Supreme Court.

Further, the Constitution has also defined the term 'misbehaviour' in this context. The Constitution states that the chairman or any other member of a SPSC is deemed to be guilty of misbehaviour, if he/she (a) is concerned or interested in any contract or agreement made by the Government of India or the government of a state, or (b) participates in any way in the profit of such contract or agreement or in any benefit therefrom otherwise than as a member and in common with other members of an incorporated company.

INDEPENDENCE

As in the case of UPSC, the Constitution has made the following provisions to safeguard and ensure the independent and impartial functioning of a SPSC:

1. The chairman or a member of a SPSC can be removed from office by the President only in the manner and on the grounds mentioned in the Constitution. Therefore, they enjoy the security of tenure.

2. The conditions of service of the chairman or a member, though determined by the governor, cannot be varied to his/her disadvantage after his/her appointment.

3. The entire expenses including the salaries, allowances and pensions of the chairman and members and also the staff of a SPSC are charged on the consolidated fund of the state. Thus, they are not subject to vote of the state legislature.

4. The chairman of a SPSC (on ceasing to hold office) is eligible for appointment as the chairman or a member of the UPSC or as the chairman of any other SPSC, but not for any other employment under the Government of India or a state.

5. A member of a SPSC (on ceasing to hold office) is eligible for appointment as the chairman or a member of the UPSC, or as the chairman of that SPSC or any other SPSC, but not for any other employment under the Government of India or a state.

6. The chairman or a member of a SPSC is (after having completed his/her first term) not eligible for reappointment to that office (that is, not eligible for second term).

FUNCTIONS

A SPSC performs all those functions in respect of the state services as the UPSC does in relation to the Central services:

1. It conducts examinations for appointments to the services of the state.

2. It is consulted on the following matters and it advises:

    1. On all matters relating to methods of recruitment to civil services and for civil posts.